

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Commissioner Sharon M Anderson
Temporary Judge Catherine Evans

Date: 07/29/2026

Court Room Rules and Notices

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#	Case Name	Tentative
1	Nunes – Trust; 30-2024-01396741	
2	Marifet – Elder Abuse; 30-2025-01484031	Motion for Attorney Fees Respondent Jangis Marifet ("Respondent") brings this Motion for Attorney Fees and Costs (ROA 36) pursuant to Welfare & Institutions Code § 15657.03(t). Pursuant to Welfare & Institutions Code § 15657.03(t), the prevailing party in a request for an Elder Abuse Restraining Order ("EARO") "may be awarded court costs and attorney's fees." Respondent is the prevailing party in this case, having successfully defended against the Request for Elder or Dependent Adult Abuse Restraining Order filed by Petitioner Hamit Marifet. (ROAs 1 and 33.) Thus, Respondent is entitled to fees and costs pursuant to Welfare and Institutions Code section 15657.03(t). A motion for attorney's fees must be filed <u>and served</u> within the time for filing a notice of appeal. (Cal. Rules of court, rule 3.1702(b).) Here, the court's minute order of 12/12/25 is an appealable order. The motion was timely filed on 2/9/26. On 06/17/2026, the court heard the matter and continued it to today's date so a valid, timely proof

		of service could be filed. However, there is no proof of service of this motion. As such, the court DENIES Respondent's motion for attorney fees and costs.
3	Ahmed – Probate; 30-2023-01338597	
4	Smith – Trust; 30-2023-01355718	<i>Smith – Trust (2023-01355718)</i> Motion to Compel Petitioner Brian Alexander Smith's Motion to Compel Further Response to Deposition Subpoena for Production of Business Records (Cheryl L. Barrett) (ROA 565) is DENIED. By this motion, Petitioner seeks to compel Ferruzo & Ferruzo to produce documents in response to a subpoena, even though their custodian of records provided an affidavit stating the firm did not have the subpoenaed documents. The motion does not, however, the subject subpoena. Accordingly, the court has nothing upon which to issue an order compelling appearance and production. Further, Ferruzo & Ferruzo's opposition is supported by a declaration from Cheryl L. Barrett attesting neither she nor she nor the firm has any documents responsive to the subpoena. Accordingly, there is nothing for the court to compel. The court will provide notice.
5	Corona – Guardianship; 30-2024-01444318	<i>Corona – Guardianship (2024-01444318)</i> Motion to Be Relieved Yerangi & Associates's motion to be relieved as counsel for Juan Chacon and Edward Schrum (ROA 59) is GRANTED. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all parties to this action and file proof of service of the court's

		order as entered. Withdrawal will be effective upon filing of proof of service of the order.
6	Sebestyen – Probate; 30-2023-01368977	<i>Notice of Withdrawal filed 06/12/2026 (ROA 136)</i>
7	Aaron – Trust; 30-2025-01483366	<i>Aaron – Trust (2025-01483366)</i> Motions to Compel (3) Petitioner Ryan Williams’ Motion to Compel Responses to Judicial Council Form Interrogatories (ROA 352), Motion for an Order Deeming as Admitted the Truth of All Matters Specified in Request for Admission, Set One (ROA 356), and Motion to Compel Responses to Special Interrogatories (ROA 360) and accompanying requests for sanctions are DENIED without prejudice to being renewed if Respondent’s motion for protective order, set for hearing on 10-14-26 at 1:30 pm in Department CM07, is denied or granted only in part. Petitioner is directed to give notice.
8	Snyder – Trust; 30-2023-01321775	<i>Snyder – Trust (2023-01321775)</i> Motion for Relief; Motion to Amend RFAs Respondent David Edwin Snyder III’s Motion for Relief from Order Deeming Requests Admitted (ROA 129) is DENIED. Respondent David Edwin Snyder III’s Motion to Withdraw or Amend Admissions (ROA 140) is GRANTED. Petitioner’s request for an award of fees is GRANTED in the amount of \$3,150. I. RELEVANT PROCEDURAL HISTORY On May 7, 2025, Petitioner Janet Robin (Petitioner) served Respondent David Edwin Snyder III

	(Respondent) with Requests for Admission, Set One (Requests). (ROA 53). (ROA 53. Exhibit 1.) Respondent, who did not have counsel, failed to respond. On August 19, 2025, Petitioner filed a motion seeking to have the Requests deemed admitted. The motion was set for hearing on April 1, 2026. (<i>Id.</i>) On September 3, 2025 at a routine hearing on the underlying petition, the court—at Petitioner’s oral request—advanced the motions from April 1, 2026 to October 1, 2025. (ROA 61.) The order advancing the hearing was made “outside the presence of the parties,” who were subsequently notified by mail. (ROA 62.) Respondent failed to file any opposition and on October 1, 2025, at a hearing not attended by Respondent, the court granted the motion and deemed the Requests admitted. (ROA 71.) Neither party attended the hearing and, although a minute order was issued granting the motion, it was not served on either party. Five days later, on October 6, 2025, counsel substituted in on behalf of Respondent. (ROA 74.) On March 12, 2026—six months and 11 days after the order deeming the admissions granted was issued—Petitioner served Respondent with the October 1, 2025 ruling. (ROA 119.) By the motions before the court, Respondent now seeks relief pursuant to Code of Civil Procedure section 473(b) (Section 473(b)) from the order deeming the Requests admitted (ROA 139) and asks permission pursuant to Code of Civil Procedure section 2033.300 (Section 2033.300) to withdraw or amend the admissions (ROA 140). II. RELIEF UNDER SECTION 473 Section 473(b) reads, in pertinent part: “The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, <i>in no case exceeding</i>
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	<i>six months</i>, after the judgment, dismissal, order, or proceeding was taken.” (Emphasis added.) “This six-month time limitation is jurisdictional; the court has no power to grant relief under section 473 once the time has lapsed.” (<i>Austin v. Los Angeles Unified School Dist.</i> (2016) 244 Cal.App.4th 918, 928.) Here, the court’s order was issued on October 1, 2025. Respondent’s motion for relief was filed on April 30, 2025 (ROA 139)—more than six months after the order was issued. The motion for relief is untimely and cannot be granted. III. RELIEF UNDER SECTION 2033.230 The denial of the motion for relief is not, however, the end of the discussion. As an alternative to that motion, Respondent brings a motion seeking to withdraw or amend the deemed admissions. The motion is made under Section 2033.300 which reads, in pertinent parts: “(a) A party may withdraw or amend an admission made in response to a request for admission only on leave of court granted after notice to all parties. [¶] (b) The court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party’s action or defense on the merits.” Section 2033.300 gives the court power to allow withdrawal or amendment of deemed admissions. (<i>Wilcox v. Birtwhistle</i> (1999) 21 Cal.4th 973, 979 [decided under 1s 2033.300’s predecessor] and <i>Katayama v. Continental Investment Group</i> (2024) 105 Cal.App.5th 898, 906.) Further, “[b]ecause the law strongly favors trial and disposition on the merits, any doubts in applying section 2033.300 must be resolved in favor of the party seeking relief. Accordingly, the court’s discretion to deny a motion under the statute is limited to circumstances where it is clear that the mistake, inadvertence, or neglect was inexcusable, or where it is clear that the withdrawal or amendment would substantially prejudice the party who obtained the admission in maintaining that party’s action or defense on the merits.” (<i>New Albertsons, Inc. v. Superior Court</i> (2008) 168 Cal.App.4th 1403, 1420-1421.)
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	Given California’s preference for trial on the merits and adding the somewhat confused and confusing history of the motion and the court’s ruling thereon, the court finds the admissions were the result of Respondent’s mistake, inadvertence, or excusable neglect within the meaning of Section 2033.300 and turns to the issue of prejudice. Petitioner argues she will suffer prejudice in maintaining her claims on the merits because she has litigated the matter for seven months in reliance on the legally binding admissions. She asserts the need “to re-litigate factual ground she has already won through the proper operation of the discovery process, at substantial additional expense and delay” (ROA 145 at p. 7) is prejudice within the meaning of Section 2033.230. Additional discovery is not the type of substantial prejudice required by Section 2033.300. In fact, Section 2033.230 recognizes the need for additional discovery and specifically addresses it by allowing the court to “impose conditions on the granting of the [2033.300] motion that are just, including, but not limited to, the following: [¶] (1) An order that the party who obtained the admission be permitted to pursue additional discovery related to the matter involved in the withdrawn or amended admission. [¶] (2) An order that the costs of any additional discovery be borne in whole or in part by the party withdrawing or amending the admission.” Petitioner’s opposition does not specify the type or extent of discovery that would be necessitated by allowing Respondent to amend the deemed admissions. The Requests included fifteen individual requests. Respondent’s proposed answers admit four requests, deny three requests in part, and fully deny the remaining eight requests. Petitioner should be prepared to discuss what further discovery she will need to address the eleven requests denied in whole or in part and the anticipated cost of that discovery. Petitioner also argues the motion should be denied because Respondent’s proffered responses to the Requests include objections when all objections were waived by Respondent’s failure to timely respond. The court strikes all objections included in Respondent’s response to the Requests.
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		Finally, Petitioner requests fees in connection with the motions. (ROA 147 at 15:1-11 and ROA 145 at pp. 14-15.) The court awards fees in the amount of \$3,150.